

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam

Civil Rule No.310(con) of 2023.

Md. Ibrahim and another.

..... petitioners.

Vs.

Md. Solaiman and others.

..... Opposite-Parties.

No one appears.

..... for the petitioners.

Mr. Md. Parvez Alam.

.....for the opposite-party No.1.

Heard and Judgment on: 25th February, 2024.

This Rule was issued calling upon the opposite-party No.1 to show cause as to why the delay of 154 days in filing the revisional application against the judgment and order dated 06.07.2022 passed by the learned District Judge, Lakshmipur in Miscellaneous Appeal No.13 of 2019, should not be condoned and/or such other or further order or orders passed as to this Court may seem fit and proper.

The relevant fact giving rise to this rule, in short, is that the petitioners filed the instant Civil Revision against the judgment and order dated 06.07.2022 passed by the learned District Judge, Lakshmipur in Miscellaneous Appeal No.13 of 2019 allowing the appeal by reversing the order dated 24.06.2019, order No.60 passed by the learned Additional Senior Assistant Judge, Sadar, Lakshmipur in Pre-emption Miscellaneous Case No.43 of 2012 allowing the application for amendment.

Being aggrieved by and dissatisfied with the said order the petitioners preferred this revisional application which is out of time by 154 days.

This matter has been appearing in the daily cause list with the name of the learned Advocates for the petitioners as well as the opposite-parties but no one appears to press the Rule on behalf of the petitioners. So this matter is taken up for hearing.

Mr. Md. Parvez Alam, learned Advocate appearing for the opposite-party No.1 to oppose the Rule strongly.

I have gone through the application and other material on record and considered the submission of the learned Advocate for the opposite-party No.1.

On perusal of the application for condonation of delay it appears that the appeal was allowed on 06.07.2022 but the same was beyond the knowledge of the petitioners because the learned Advocate did not inform the same. The petitioners filed an application for obtaining certified copy of the impugned judgment and order on 17.10.2022 and received the same on 17.11.2022. Thereafter, the tadbirkar of the petitioners came to Dhaka on 20.12.2022 and after scrutinizing the document the learned Advocate informed him to collect certified copy of the plaint and other documents. The petitioners again filed an application for obtaining certified copy of the relevant papers on 14.02.2023 and received the same on 02.03.2023 then the tadbirkar came to the learned Advocate on 05.03.2023 and filed the revisional application and that time for preferring Civil Revision has already been

expired. If, on behalf of the petitioners a reasonable explanation of delay is given, there is no reason why it should not be accepted.

Although the Limitation Act does not provide for any Specific period of Limitation for invoking discretionary jurisdiction of this Court under section 115 of the Code of Civil Procedure but a long standing practice one has to file it without causing inordinate delay.

It appears that Section 5 of the Limitation Act has empowered to allow an application for a revision beyond the period of limitation if the petitioner can satisfy the Court that he had sufficient cause for not preferring the revision application within the period of limitation.

In the case of Khairullah (Md) Vs. ADC (Revenue) and another, reported in 54 DLR(AD) 13, it was observed that-

“It is well settled that the condonation of delay under section 5 of the Limitation Act is a highly discretionary matter and considering the facts and circumstances the High Court Division exercised discretion in favour of the Government-respondent. In view of the aforesaid we hold that no illegality and wrong has been committed by the High Court Division in exercising the discretion.”

Considering the facts, circumstance and materials on record, it appears that the petitioners filed an application for obtaining certified copy of the impugned judgment and order on 17.10.2022 and accordingly received the same on 17.11.2022. Thereafter the

tadbirkar of the petitioners conducted their learned Advocate who informed them that time for preferring Civil Revision has already been expired and prepared the revisional application taking the ground for obtaining certified copy can be treated sufficient ground to condone the delay of 154 days in filing the revisional application. The grounds taken by the petitioners are humanitarians which should not be ignored. The delay occurred for preferring the revisional application was beyond control of the petitioners. The petitioners did not act negligently; rather they were diligent in filing the revisional application.

Ordinarily a litigant does not stand to benefit by lodging an appeal or revision late. Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this when delay is condoned the highest that can happen is that a cause would be decided on merits after hearing the parties. The reasons for delay are satisfactorily explained and as such, the same can be accepted. The petitioners were prevented by sufficient cause in preferring revisional application in time which caused a delay of 154 days.

In view of the above, I find merit in the Rule to condone the delay of 154 days in filing the revisional application.

In the result, the Rule is made absolute, however, without any order as to cost. The delay of 154 days in filing the Civil Revision is hereby condoned.

The office is directed to do the needful forthwith. The petitioners may take necessary step for hearing the Revisional application in the appropriate Bench.

Md. Abadul Haque/ Bench Officer.